

opposition to the motion to transfer and consolidate their San Bernardino action with the San Diego action,” and it made no difference that they referred to themselves as “Specially Appearing Defendants.”].)

Here, on 11/27/24, Plaintiffs filed a motion to consolidate this action with the action *Donna Augustini v. Chris Kappes, et al.*, Case No. 30 2024-01430705-CU-FR-CJC (the "*Augustini Action*") for all purposes. Plaintiff Donna Augustini in the Augustini Action filed opposing papers to the motion in that action, Case No. 30- 2024-01430705. In that Opposition, she stated that she filed her opposition in the *Augustini Action* in order: (a) to avoid any claim that she has appeared or otherwise submitted to the court’s jurisdiction in the *Kappes Action*; and (b) to avoid having to pay a first appearance fee in the *Kappes Action* as a condition to opposing the motion. (See Augustini Decl., ¶ 11, Exh. H.) The act of filing the Opposition in the *Augustini Action* was improper, regardless of the reason. (See Cal. Rules of Ct., rule 3.350(a) [memorandums must be filed in lowest number case].)

The motion was denied without prejudice on 8/22/25 as being premature. Thereafter, on 3/2/26 at an OSC re sanctions for failure to serve and prosecute (both Mr. Verdun and Mr. Augustini were present), the court ordered the *Kappes Action* and the *Augustini Action* consolidated for all purposes. The court designated *Kappes vs. Augustin* 30-2024-01430382 as the lead case and ordered that further documents must be filed under the case number and caption of the lead case. (See 3/2/26 Order [ROA 58].)

On 6/2/26, the Plaintiffs submitted a proof of service of summons stating that Donna Augustini was served via her counsel of record, Mr. Augustini, and that Donna Augustin had appeared in the action. (ROA 63.)

Defendant Ms. Augustini now brings this motion to quash, arguing that electronic service to her counsel is improper service of the summons and complaint.

In response, Plaintiffs argue that Donna Augustini has generally appeared in this action, because she appeared in the *Augustini v. Kappes* action and those two actions have